

HOUSE No. 365

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the issuance of a Class 1 dealer license.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/15/2025</i>

HOUSE No. 365

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 365) of Michael J. Finn relative to certain appeals of actions of licensing boards or officers of the approval and granting of class 1 motor vehicle dealer licenses. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 289 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the issuance of a Class 1 dealer license.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 59 of chapter 140 of the General Laws, as appearing in the 2014 Official Edition,
2 is hereby amended, at the end thereof, by inserting the following new paragraph:

3 "A person, within ten days of such action, may appeal to the registrar the action of a
4 licensing board or officer to approve and grant a class 1 license to a party pursuant to section 58
5 and this section. For the purposes of this section, a class 1 licensee, licensed under subsection (b)
6 of Section 58, shall be deemed to have standing to challenge, administratively and judicially, the
7 issuance of a class 1 license to another person by a licensing board or officer under this chapter if
8 said class 1 licensee, asserting a challenge, alleges that said licensing board or officer has
9 approved a class 1 license to a party that has not satisfied the requirements of said subsection (b)

10 of section 58. The registrar shall adopt rules and regulations providing for a process in which a
11 person, including, but not limited to, a class 1 licensee, licensed under subsection (b) of section
12 58, may challenge the decision of a licensing board or officer pursuant to this section.

13 The registrar shall render a decision either to affirm or revoke the license in dispute
14 within thirty days of receipt of the challenge. A person who is aggrieved by the decision of the
15 registrar to re-affirm or revoke the approval of the class 1 license so challenged pursuant to the
16 process herein may, within ten days after such action by the registrar, appeal therefrom to any
17 justice of the superior court in the county in which the premises sought to be occupied under the
18 license or permit applied for are located. The justice shall, after such notice to the parties as he
19 deems reasonable, give a summary hearing on such appeal, and shall have jurisdiction in equity
20 to review all questions of fact or law and may affirm or reverse the decision of the board or
21 officer and may make any appropriate decree."